

Khan Raza v. State of U.P. — restoration on first 6.14 installment

High Court of Judicature at Allahabad · Division Bench · 1 February 2021 · WRIT - C No. - 600 of 2021 · **Writ disposed; 6.14 representation; restoration on first installment.**

HEADNOTE

Writ challenging a recovery citation for electricity arrears of Rs.3,13,417 was disposed of without examining merits. The High Court directed the consumer to represent under clause 6.14 of the Electricity Supply Code, 2005 for easy installments, and ordered that the connection be restored on deposit of the first installment as fixed by the licensee, subject to timely payment of remaining installments.

FACTUAL SUMMARY

Khan Raza filed a writ seeking to quash a recovery citation dated 15 October 2020 (S.N. DG64561082700, R.C. PRAPTRA-36) issued by respondent no. 3 and to restrain coercive action. He offered to deposit outstanding electricity dues of Rs.3,13,417 in easy installments. Counsel for respondent no. 2 submitted that the installment request could be considered and decided under clause 6.14 of the Electricity Supply Code, 2005, and asked that reasonable time be allowed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility and restoration on first installment

HOLDING

Without examining the merits of the recovery citation, the Court disposed of the writ by directing the petitioner to represent all grievances to the licensee within three weeks for consideration and decision strictly in accordance with law, preferably within four weeks, under clause 6.14. On deposit of the first installment as may be fixed by the licensee, the electricity connection shall be restored, subject to payment of further installments within the period fixed; default disentitles the petitioner to the benefit of the order. ¶ 5-6

PRINCIPLE TAGS

installment-payment-clause-6.14 A request to pay electricity arrears in easy installments is to be considered by the licensee under clause 6.14; the Court directed restoration of supply on deposit of the first installment as so fixed. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 15.10.2020

Writ disposed of without examining merits; the citation was neither quashed nor upheld. ¶ 5